MASTER SERVICES AGREEMENT

Draft for internal review

This Agreement is made on 3 March 2026 between:

(1) **Larkspur Data Systems Ltd**, a company registered under number 08814527, whose registered office is at 14 Wexcombe Road, Ashford Vale AV3 7QP (the **Customer**); and

(2) **Ashcombe Cloud Services Ltd**, a company registered under number 11290366, whose registered office is at Unit 9, Pellam Business Park, Hartwell HW2 4RD (the **Supplier**).

Background. The Customer wishes to move its order management platform to a managed hosting service. The Supplier has agreed to provide that service on the terms of this Agreement.

1. Definitions

1.1 **Agreement** means these terms, the schedules and every Statement of Work signed under them.

1.2 **Services** means the managed hosting, monitoring and support services described in Schedule 1 and in each Statement of Work.

1.3 **Service Credits** means the reductions of the Monthly Fee set out in Schedule 2 when the Supplier misses a Service Level.

1.4 **Customer Data** means all data, including personal data, that the Customer or its users upload to or create in the Services.

1.5 **Business Day** means a day other than a Saturday, Sunday or public holiday in the place where the Customer has its registered office.

2. Services

2.1 The Supplier shall provide the Services from the Commencement Date with the skill, care and diligence of a competent provider of similar services.

2.2 The Supplier shall meet the Service Levels in Schedule 2. Availability is measured monthly and excludes planned maintenance announced at least five Business Days in advance.

2.3 The Customer may request changes to the Services in writing. No change is binding until both parties sign a change note that states its effect on the fees and the timetable.

3. Fees and payment

3.1 The Customer shall pay the fees set out in the fee schedule below. All fees are exclusive of VAT, which the Customer shall pay at the applicable rate.

3.2 The Supplier shall invoice the Monthly Fee in advance on the first Business Day of each month. The Customer shall pay each undisputed invoice within 45 days of receipt.

3.3 Late payments bear interest at 4% per year above the base rate of the central bank, accruing daily from the due date until payment.

3.4 From the first anniversary of the Commencement Date, the Supplier may increase the fees once per year by giving 60 days' written notice. Each increase shall not exceed 6%.

Fee schedule (GBP, excluding VAT)

Item	Charge	Billing
Onboarding and migration	18,500.00	One-off, on signature
Managed hosting, production	7,200.00	Monthly
Managed hosting, test	1,350.00	Monthly
24/7 monitoring and support	2,950.00	Monthly
Additional engineering	860.00	Per day, on request

4. Term and termination

4.1 This Agreement starts on the Commencement Date and continues for an initial term of 36 months. It then renews for successive periods of 12 months unless either party gives at least 90 days' notice before the end of the current term.

4.2 Either party may terminate this Agreement with immediate effect by written notice if the other party commits a material breach that is not remedied within 30 days of a notice requiring it.

4.3 On termination, the Supplier shall return all Customer Data in a commonly used format within 30 days and then securely delete every copy, unless the law requires it to keep one.

5. Liability

5.1 Nothing in this Agreement limits liability for death or personal injury caused by negligence, for fraud, or for any other liability that cannot be limited by law.

5.2 Subject to clause 5.1, each party's total liability arising under or in connection with this Agreement in any contract year shall not exceed 150% of the fees paid or payable in that year.

5.3 Neither party is liable for loss of profits, loss of business, or any indirect or consequential loss.

6. Confidentiality

6.1 Each party shall keep the other party's confidential information secret and use it only to perform this Agreement. This obligation survives termination for five years.

6.2 A party may disclose confidential information to its employees, advisers and subcontractors who need to know it, provided that they are bound by equivalent obligations.

7. Data protection

7.1 The Supplier processes Customer Data only on the documented instructions of the Customer and as set out in the data processing schedule.

7.2 The Supplier shall notify the Customer without undue delay, and in any case within 48 hours, after becoming aware of a personal data breach affecting Customer Data.

7.3 The Supplier shall not transfer Customer Data outside the agreed hosting regions without the Customer's prior written consent.

8. General

8.1 Neither party may assign this Agreement without the other party's prior written consent, which shall not be unreasonably withheld.

8.2 This Agreement is governed by the laws of England and Wales. The courts of England and Wales have exclusive jurisdiction over any dispute arising from it.

Schedule 2 - Service Levels and Service Credits

Service Level	Target	Service Credit
Availability, production	99.9% per month	5% of the Monthly Fee per 0.1% below target, up to 25%
Priority 1 incident response	30 minutes	2% of the Monthly Fee per breach
Priority 2 incident response	4 hours	1% of the Monthly Fee per breach
Backup restore test	Quarterly	None, reported in the service review

Service Credits are the Customer's sole financial remedy for a missed Service Level, without prejudice to its right to terminate under clause 4.2. Total Service Credits in a month shall not exceed 25% of the Monthly Fee.

Signed for and on behalf of the parties

Larkspur Data Systems Ltd

Name: Elena Marsh
Title: Head of Procurement

Signature: _____

Date: _____

Ashcombe Cloud Services Ltd

Name: Graham Feld
Title: Managing Director

Signature: _____

Date: _____